

STATE OF NEW YORK

7408--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 25, 2025

Introduced by M. of A. ZACCARO, McDONALD, O'PHARROW, COLTON, SAYEGH, DAVILA, BEEPHAN, DURSO, BURROUGHS, REYES, KASSAY, LEVENBERG, LUNSFORD, GRIFFIN, CUNNINGHAM, DE LOS SANTOS -- read once and referred to the Committee on Housing -- recommitted to the Committee on Housing in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the real property law, in relation to the termination of residential lease by victims of domestic violence

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Paragraph (c) of subdivision 2 of section 227-c of the real
2 property law, as added by chapter 694 of the laws of 2019, is amended to
3 read as follows:

4 (c) Within twenty-five days of such notice, the tenant shall provide
5 documentation demonstrating that the tenant or a member of the tenant's
6 household has been a victim of domestic violence as described in subdi-
7 vision one of this section. This documentation may include any one or
8 more of the following:

9 (i) A temporary or final order of protection issued by a court of
10 competent jurisdiction;

11 (ii) A record, complaint, or report from a federal, state, or local
12 law enforcement agency of an act of domestic violence as described in
13 section four hundred fifty-nine-a of the social services law or a family
14 offense as described in section eight hundred twelve of the family court
15 act, or certifying that the tenant or a member of the tenant's household
16 has been subjected to domestic violence;

17 (iii) A record from a health care provider for treatment related to
18 domestic violence as described in section four hundred fifty-nine-a of
19 the social services law or a family offense as described in section
20 eight hundred twelve of the family court act;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 (iv) Written attestation related to their eligibility as a victim of
2 domestic violence pursuant to section four hundred fifty-nine-a of the
3 social services law or a family offense pursuant to section eight
4 hundred twelve of the family court act.

5 (A) The tenant shall not be required to disclose confidential informa-
6 tion or details relating to such person's status as a victim of domestic
7 violence as a condition to terminate the lease.

8 (B) Further, the tenant shall not be terminated from the lease contin-
9 gent on a result of arrears accrued in the account.

10 (C) All information provided by the tenant shall be disposed of no
11 later than thirty days after receiving such information submitted by
12 such person in a manner as to maintain confidentiality of such informa-
13 tion;

14 (v) A written verification from any other qualified third party to
15 whom the tenant, or a member of the tenant's household reported the
16 domestic violence.

17 (A) "Qualified third party" shall include: any law enforcement offi-
18 cer; employee of a court of the state; attorney, physician, psychia-
19 trist, psychologist, social worker, registered nurse, therapist, or
20 clinical professional counselor licensed to practice in any state;
21 person employed by a government or non-profit agency or service that
22 advises or provides services to persons regarding domestic violence; or
23 any member of the clergy of a church or religious society or denomi-
24 nation.

25 (B) Written verification as described herein shall be satisfied by any
26 sworn or notarized statement including the required information.

27 § 2. This act shall take effect immediately.